

HOUSE No. 3992

The Commonwealth of Massachusetts

PRESENTED BY:

Rita A. Mendes

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to trials for personal injuries involving a motor vehicle accident.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Rita A. Mendes</i>	<i>11th Plymouth</i>	<i>1/17/2025</i>

HOUSE No. 3992

By Representative Mendes of Brockton, a petition (accompanied by bill, House, No. 3992) of Rita A. Mendes relative to trials for personal injuries involving a motor vehicle accident. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to trials for personal injuries involving a motor vehicle accident.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 The fourth paragraph of section 34M of chapter 90 of the General Laws, as appearing in
2 the 2022 Official Edition, is hereby amended by adding the following sentence:- In a trial for
3 personal injuries involving a motor vehicle accident, the amount of personal injury protection
4 benefits paid by the insurer to the insured may be disclosed to the jury with the additional
5 information: (i) that such payments must be repaid; and (ii) the amount shall be deducted by the
6 court from any judgement made by the jury.